ORDINANCE NO. 13

An ordinance creating a Private Policing License

Whereas the Wimbishville City Council recognizes that private entities have incentive to maintain law and order within Wimbishville
Whereas the City Council acknowledges the need to combat crime within Wimbishville

NOW THEREFORE,
THE PEOPLE OF THE CITY OF WIMBISHVILLE DO ORDAIN AS FOLLOWS:

Section 1. Title and Purpose

(a) This ordinance shall hereby be known as and may be cited as the Wimbishville Private Policing Act
(b) The purpose of this ordinance is to establish a Private Policing License allowing private entities to undertake policing activities in Wimbishville

Section 2. Definitions

(a) A planned policing activity is defined as an activity that has been scheduled at least a day in advance, such as assigned patrols and other organized activities.
(b) An emergency policing activity is defined as an action taken in response to an emergency the information of which was made available up to 6 hours prior to the action.

Section 3. The Private Policing License

(a) The City Council establishes a Private Policing License supervised by the Wimbishville Police Department
(b) The Private Policing License grants private entities the ability to undertake policing activities and enforce law and order within certain districts
(c) Private Policing Licenses are restricted district-by-district and the distinct-unique powers each License grants is established by the Wimbishville Police Department
(d) Private entities are allowed to apply for a Private Policing License within Wimbishville districts through an application process developed by the Wimbishville Police Department
(e) The application process must include, but is not limited to:
    (i) A proof of efficacy in which the private entity in question prove that they can efficiently undertake policing in the entirety of the given district
    (ii) A proof of solvency in which the private entity in question proves that they are to be solvent through at least the next fiscal year

(iii) At least 2 testimonial by customers guaranteeing the services of the private entities

(f) A private entity may not hold more than 2 Private Policing Licenses

(g) Except private security relating to individual clients, policing actions without a Private Policing License is considered an illegal act punishable with up to a $100,000 fine and 2 years in prison.

(h) The Wimbishville Police Department may revoke a Private Policing License over any 3 violations of obligations and/or policing duties within a 2 year period

(i) Entities wishing to withdraw their Private Policing License must notify the Wimbishville Police Department within 30 days and stop all policing activities within 7 days.

Section 4. Private Policing License Obligations

(a) Entities with a Private Policing License must share all planned policing activities within 48 hours with the Wimbishville Police Department through official channels

(b) Any changes to planned policing activities must be shared with the Wimbishville Police Department through official channels as soon as possible

(c) Entities with a Private Policing License must share all emergency policing activities as soon as possible with the Wimbishville Police Department through official channels

(d) Entities with a Private Policing License must coordinate with the Wimbishville Police Departments in all aspects; in all cases, the needs of the Wimbishville Police Department takes precedence over the needs of the private entity.

(e) Entities with a Private Policing License are allowed to charge the Wimbishville Police Department for up to $15,000,000 a year with all planned policing activities within the districts they hold a License for.

(f) Entities with a Private Policing License are entitled to municipal tax reductions as determined by the Wimbishville Treasury Department.

Section 5. Severability

If any provision of this ordinance or any portion thereof is held invalid or unconstitutional, the remainder shall continue in full force and effect.

Section 6. Effective Date

(a) All sections of this ordinance shall take effect one (1) week from passage.

Section 7. Certification

The City Council shall certify the passage of this ordinance and ensure its publication as required by law.